

FILED
IN CLERK'S OFFICE
US DISTRICT COURT E.D.N.Y.

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

★ OCT - 4 2011 ★

SHARIF LEE and CYPRIAN SMITH,

^x BROOKLYN OFFICE

Plaintiff,

-VS-

ECF CASE No.:

CV 11 - 4839

COMPLAINT AND
JURY DEMAND

THE CITY OF NEW YORK, POLICE COMMISSIONER
RAYMOND W. KELLY, DETECTIVE PATRICK
SMITH, Shield Number 5453, POLICE OFFICER FREDERIC
DAUGHTRY, Shield Number 25363, POLICE OFFICER ZAHID
MEHMOOD, Shield Number 8879, POLICE OFFICER
MARLON GUTHRIE, Shield Number 16947, DETECTIVE
MICHAEL HARDMAN, Shield Number 7361, POLICE
OFFICER MATTHEW DeGENNARO Shield Number 6635,
POLICE OFFICER PETER CUNDARI, Shield Number 2620
POLICE OFFICER MATTHEW KALIL Shield Number 22351,
DAVID BETHELMY, SHENELLE BETHELMY,
JOAN C. BETHELMY, JANELL P. BETHELMY and
JOHN/JANE DOES #'s 1-6, Individually, who were
involved in the incident resulting in Plaintiffs'
false arrest and/or injuries,

MATSUMOTO, J.

EVES, J.

Defendants.

^x

COMPLAINT

PRELIMINARY STATEMENT

1. This is an action for money damages brought pursuant to 42 U.S.C. Sections 1983 and 1988, and the Fourth and Fourteenth Amendments of the United States Constitution, and under common law of the State of New York, against the City of New York, Detective Patrick Smith, Police Officer Zahid Mehmood, Police Officer Marlon Guthrie, Detective Michael Hardman, Police Officer Matthew DeGennaro, Police Officer Peter Cundari, Police Officer Matthew Kalil and John/Jane Does #'s 1-6, Individually, all being police officers

employed by the New York City Police Department, in their individual capacities, and against Police Commissioner Raymond W. Kelly. Jurisdiction is based upon 28 U.S.C. Sections 1331 and 1343, and on the pendent jurisdiction of this Court to entertain claims arising under State law against defendants David Bethelmy, Shanelle Bethelmy, Joan C. Bethelmy and Janell P. Bethelmy.

2. The amount in controversy exceeds \$150,000.00 excluding interest and costs.
3. Venue is laid within the United States District Court for the Eastern District of New York in that Defendant City of New York is located within, and a substantial part of the events giving rise to the claim occurred within the boundary of the Eastern District of New York.
4. It is alleged that on January 16, 2010, that certain of the individually-named police officer defendants, all employed by the New York City Police Department ("NYPD"), acting under color of state law, intentionally and willfully subjected plaintiff SHARIF LEE ("Sharif"), to *inter alia*, false arrest and false imprisonment upon making an unreasonable seizure of the person of this plaintiff. These actions violated this plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution. It is further alleged that these violations and torts were committed as a result of policies and customs of the NYPD.
5. It is further alleged that on January 28, 2010, that certain of the individually-named police officer defendants, all employed by the NYPD, acting under color of state law, intentionally and willfully subjected plaintiff CYPRIAN SMITH ("Cyprian"), to, *inter alia*, false arrest and false imprisonment upon making an unreasonable seizure of the person of these plaintiffs. These actions violated this plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution. It is further alleged that these violations and torts were committed as a result of policies and customs of the NYPD.
6. Plaintiffs seek monetary damages (special, compensatory and punitive) against the defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

7. Plaintiffs further seek monetary damages (special, compensatory and punitive) against the defendants David Bethelmy, Shanelle Bethelmy, Joan C. Bethelmy and Janell P. Bethelmy, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

PARTIES

8. Sharif Lee and Cyprian Smith were each at all material times, of full age, a resident of the State of New York, and a United States citizen.
9. At all times relevant to this Complaint, the defendants City of New York, New York Police Department ("NYPD") and all named and unnamed individual police officers named herein were duly appointed and acting officers and entities of the NYPD, acting under color of law, to wit: under color of statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
10. Detective Patrick Smith ("Smith"), Shield Number 5453, Police Officer Frederic Daughtry, Shield Number 25363, Police Officer Zahid Mehmood, Shield Number 8879, Police Officer Marlon Guthrie, Shield Number 16947, Detective Michael Hardman, Shield Number 7361, Police Officer Matthew DeGennaro, Shield Number 6635, Police Officer Peter Cundari, Shield Number 2620, Police Officer Matthew Kalil, Shield Number 22351 and Police Officers John/Jane Does #'s 1-6 ("Police Officers"), at all times relevant were New York City Police Officers of the New York City Police Department. They are each sued in their individual and official capacities as a result either of their actions at the scene of the incident giving rise to the claims herein, including the unlawful arrests of Sharif and Cyprian, or, in their capacity as policymakers with respect to training, supervision and discipline of police officers under their command.
11. The City of New York ("The City") is a municipal corporation organized under the laws of the State of New York.

12. New York City Police Commissioner Raymond W. Kelly (“The Commissioner” or “NYPD”) was at all times relevant the Commissioner of the New York City Police Department, and, as such, was a policymaker with respect to training, supervision and discipline of NYPD officers, including the individual defendants herein. The Commissioner is being sued both in his individual and official capacities.
13. The NYPD is a municipal corporation and the public employer of the said officers.
14. At all times relevant to this complaint, the defendants David Bethelmy and Shanelle Bethelmy, were husband and wife who were occupants of real property commonly known as 5208 Beverly Road, Brooklyn, New York. Upon information and belief, defendants Joan C. Bethelmy and Janell P. Bethelmy, were the owners of said real property.

FACTS

15. On or about January 16, 2010, at approximately 1:30 P.M, Sharif was lawfully operating his vehicle on or near Snyder Avenue and Kings Highway, Brooklyn, New York. On January 28, 2010, at approximately 11:00 A.M., Cyprian was working within the scope of his employment as a delivery worker for Edible Arrangements, 105 Clinton Street, Brooklyn, New York.
16. At the first time and place stated above, approximately seven police officers, including Smith, Daughtry, Mehmood and Guthrie, and John/Jane Does #1-3, jumped from their respective police cars, approached, handcuffed and arrested Sharif.
17. At the second time and place above, approximately seven police officers, including Hardman, DeGennaro, Cundari and Kalil, and John/Jane Does #4-6, jumped from their respective police cars, approached, handcuffed and arrested Cyprian at Cyprian’s place of employment while he was performing the work and job duties for which he was hired. Plaintiffs were each arrested from an alleged incident which had allegedly occurred on December 14, 2009 at the

property owned and occupied by defendants Joan C. Bethelmy, Janell P. Bethelmy, David Bethelmy and Shanelle Bethelmy, whereby David Bethelmy and Shanelle Bethelmy claimed to have been carjacked, kidnapped, robbed and burglarized by strangers at their residence located at 5208 Beverly Road, Brooklyn, New York. Between December 14, 2009 and January 28, 2010, the investigation conducted by defendants City of New York and NYPD failed to establish probable cause to arrest either of the plaintiffs herein..

18. The defendant City of New York, Commissioner and the individually-named police officers nevertheless arrested the plaintiffs herein notwithstanding the facts and circumstances that otherwise should have eliminated the plaintiffs as suspects with regard to this purported incident. The facts and circumstances as presented to the City during its investigation, place into doubt whether *any* criminal offense ever took place. The facts and circumstances further place into doubt that either Sharif or Cyprian participated in any such alleged incident to the extent that such an incident even took place. These facts and circumstances include, but are in no manner limited to, the following: (a) No injuries occurred; (b) the house was described by police as “clean and not ransacked;” (c) there was no property damage to the home; (d) no fingerprints were recovered; (e) inconsistent information regarding the amounts of cash that was alleged to have been stolen from the residence was provided by defendant Shanelle Bethelmy; (f) DNA analysis taken from the residence established no connection with either plaintiff to this residence; (g) No independent witnesses were ever produced to support the defendant Bethelmy’s description of an incident which allegedly lasted one hour or more; (h) a failure to investigate, view and analyze David Bethelmy’s I-phone, which was described as being allegedly taken from his possession during the ‘car-jacking’ and kidnapping for the purpose of determining its relevant usage and also to determine relevant GPS; (i) the false premise held by all of the defendants that a civilian, David Bethelmy, had conducted a private investigation of the whereabouts of these alleged ‘perpetrators’ throughout the Borough of Brooklyn, had separately and independently located the two individuals whom he claimed had committed the

alleged offenses, and had located them so on two separate dates and at two distinct locations within Brooklyn, all performed without any police assistance or police involvement; and (j) the “Edible Arrangements” vehicle allegedly operated by Cyprian during the course of the alleged incident was described to the defendants NYPD and to The City of New York by defendant David Bethelmy as containing *Pennsylvania* license plates, not the **New York** plates of the vehicle utilized by the Edible Arrangements Clinton Street store location where Cyprian had been employed until the time of his arrest.

19. Both plaintiffs were transported to the 67th Precinct in Brooklyn after their arrests. While in the Precinct, Sharif Lee was informed by Smith and Cyprian Lee was separately informed by Hardman that each plaintiff was identified on videotape removed from the Bethelmy’s home as the individuals who had committed the home invasion.
20. Both plaintiffs were arrested and indicted for Robbery in the First Degree (P.L. 160.15), Robbery in the Second Degree (P.L. Section 160.10), Robbery in the Third Degree (P.L. Section 160.05), Burglary in the First Degree (P.L. 140.30), Burglary in the Second Degree (P.L. Section 140.25), Burglary in the Third Degree (P.L. 140.20), Kidnapping in the Second Degree (P.L. 135.20), Unlawful Imprisonment in the First Degree (P.L. 135.10), Unlawful Imprisonment in the Second Degree (P.L. 135.05), two separate counts of Petit Larceny (P.L. 155.25). As a result, Plaintiff Sharif Lee was incarcerated from January 16, 2010 to April 29, 2010, or 104 days. Plaintiff Cyprian Smith was incarcerated between January 28, 2010 and June 11, 2010, or 135 days.
21. At no time during the events described above were any of the plaintiffs intoxicated, incapacitated, a threat to the safety of themselves or others, or disorderly. None had committed any criminal offenses.
22. The defendant police officers had no warrant for the arrest of the plaintiffs; no probable cause for the arrest of the plaintiffs under these circumstances; and no legal cause or excuse to seize the person of the plaintiffs.
23. The plaintiffs were arbitrarily and falsely accused with the above-cited criminal charges, and they were arbitrarily and falsely detained.

24. On or about May 16, 2011, all of the above criminal charges against plaintiffs were dismissed and sealed in the matter entitled People v. Sharif Lee and Cyprian Smith, Kings County Indictment Number 1000/10.
25. No warrants were ever produced by the police at any time. The defendant police officers named above each seized, interrogated and searched the plaintiffs and their person without a warrant.
26. The plaintiffs were each arrested and detained without probable cause or legal justification.
27. The defendant City of New York and the individually-named police officers are required to investigate basic evidence, and are required to ascertain whether a crime had been committed at all before invoking the power of a warrantless arrest and detention. In the matter at bar, defendant City of New York and the individually-named police officers utterly failed to do so.
28. At all times during the events described above, the defendant police officers were engaged in a joint venture. The individual officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during the said events.
29. As a direct and proximate result of the said acts of the defendant Officers, the plaintiffs Sharif Lee and Cyprian Smith suffered the following injuries and damages:
 - a. Violation of their constitutional rights under the Fourth and Fourteenth amendments to the United States Constitution to be free from an unreasonable search and seizure of their respective person;
 - b. Loss of their physical liberty;
 - c. Physical pain and suffering and/or emotional trauma;
 - d. Loss of Employment.
30. The actions of the defendant Police Officers violated the long-established and well-settled federal constitutional rights of Sharif Lee and Cyprian Smith, to wit: the freedom from the unreasonable seizure of Sharif Lee's and Cyprian Smith's person.

31. The defendants David Bethelmy, Shenelle Bethelmy, Joan C. Bethelmy and Janell Bethelmy ("Bethelmy's") all resided and/or owned the subject property- 5208 Beverley Road, Brooklyn, New York - where the alleged crimes generally were to have occurred. The allegations made that certain criminal offenses occurred on December 14, 2009 inside and outside of the Bethelmy's home were knowingly false. In the alternative, even if the Bethelmy's had a good-faith basis that these offenses actually occurred, they knew that they were not committed by the plaintiffs herein. The Bethelmy's proceeded to falsely and wrongfully accuse plaintiffs of the offenses for which they were ultimately indicted.

COUNT I

42 U.S.C. Section 1983 Against Individual Defendant NYPD Officers.

32. Paragraphs 1 through 31 are incorporated herein by reference as though full set forth herein at length.
33. Plaintiffs Sharif Lee and Cyprian Smith claim damages for the injuries set forth above under 42 U.S.C. Section 1983 against defendants City of New York, NYPD, New York City Police Officers Smith, Daughtry, Mehmood, Guthrie, Hardman, DeGennaro, Cundari and Kalil, and John/Jane Does 1-6 all engaged in the actions and conduct alleged herein in their official capacities as NYPD police officers and under color and authority of federal and state law, regulation, ordinance, custom and usage, for violations of Sharif Lee's and Cyprian Smith's constitutional rights under color of law. Each officer acted within the course and scope of their employment with the NYPD of defendant City of New York.
34. Such actions served to deprive plaintiffs of the rights and privileges of the United States Constitution, the Fourteenth Amendment of the U.S. Constitution and Section 1983 of 42 U.S.C. In particular, they were deprived of their right to due process of law, of their right to happiness and to their liberty.

35. Defendants New York City Police Officer individually named not only engaged in intentional conduct, but they did so either with the intent to violate the plaintiffs' civil rights, or with reckless disregard for whether the defendant's conduct would violate such rights.

36. Plaintiffs Sharif Lee and Cyprian Smith have each been damaged as a result of defendants' wrongful act in the amount of Five Million Dollars.

COUNT II

False Arrest and Illegal Imprisonment Against Individual Defendant NYPD Officers.

37. Paragraphs 1 through 36 are incorporated herein by reference as though fully set forth hereinafter at length.

38. Defendant NYPD Police officers named and un named herein illegally arrested and illegally imprisoned plaintiffs Sharif Lee and Cyprian Smith. In doing so, these officers not only engaged in intentional conduct, but they did so either with the intent to violate the plaintiffs' federal rights, or with a reckless disregard for whether defendant's conduct would violate such rights.

39. As a result of this false arrest and illegal imprisonment, the plaintiffs, Sharif Lee and Cyprian Smith, suffered the damages as aforesaid in the amount of five Million Dollars.

COUNT III

42 U.S.C. Section 1983 Against Defendants

40. Paragraphs 1 through 39 are incorporated herein by reference as though full set forth hereinafter at length.

41. Prior to January 16, 2010, the NYPD developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of Sharif's' rights. Prior to January 28, 2010, the

NYPD developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of Cyprian's rights.

42. It was the policy and/or custom of the NYPD to inadequately supervise, train, discipline, sanction or otherwise directs its police officers, including the defendant officers named in this case, thereby failing to adequately discourage further constitutional violations on the part of its police officers. The NYPD did not require appropriate in-service training of officers on the subject of police misconduct, nor did it take measures to prevent such constitutional abuses such as described herein.
43. As a result of the NYPD's developed policies and customs, police officers of the NYPD, including the defendant officers named in this case, believed that their actions would not be properly monitored by supervisory officers, and that conduct would not be investigated or sanctioned, but would rather be tolerated.
44. The above-mentioned policies, practices and customs demonstrated a deliberate indifference on the part of policymakers of the NYPD. Said policies, practices and customs have served to encourage and sanction the police officers' unlawful conduct described above, such conduct having adversely impacted upon the constitutional rights of citizens, and were the cause of the violations of the plaintiffs' rights alleged herein on January 16, 2010 and January 28, 2010 respectively.
45. Plaintiffs Sharif Lee and Cyprian Smith have been damaged as a result of wrongful acts of defendants' City of New York, Commissioner Raymond W. Kelly and all individually-named and unnamed police officers above in the amount of Five Million Dollars.

COUNT IV

Malicious Prosecution against Defendants

46. Paragraphs 1 through 45 are incorporated by reference as though fully set forth hereinafter at length.

47. Defendants each caused false criminal accusatory instruments to be filed against plaintiff Sharif Lee and Cyprian Smith and testified falsely against plaintiffs. This malicious prosecution was encouraged, aided, abetted and incited voluntarily and willfully by the defendants David Bethelmy, Shenelle Bethelmy, Joan C. Bethelmy and Janelle P. Bethelmy.
48. Following their arrests, the plaintiffs were taken as a prisoner to the New York City Rikers Island Jail, and were incarcerated in the company of criminals and undesirable persons. The plaintiffs were kept in jail for the length of time set forth in Paragraph 28 herein.
49. The criminal proceedings were dismissed and sealed, thus terminated favorably to plaintiffs Sharif Lee and Cyprian Smith.
50. Defendants have deprived plaintiffs of their civil, constitutional and statutory rights, and have conspired to deprive him of such rights and are liable to plaintiff under 42 USC Section 1983, New York State common law and the New York State Constitution.
51. As a result of the malicious prosecution implemented by the defendants, plaintiff Sharif Lee and Cyprian Smith were damaged in the sum of Five Million Dollars.
52. The above acts constituted reckless and wanton misconduct and were willfully and maliciously directed against the plaintiffs.
53. As a result of defendants' actions and by reason of these facts, plaintiffs suffered great mental and physical anguish and distress; were subjected to humiliation, embarrassment, ridicule, derision and scorn among those who knew them and their detention; were injured and impaired in his credit, good name, character and reputation; were prevented from attending to their work and employment; were compelled to expend money and incur expenses in the above proceedings and to incur lost wages and other miscellaneous expenses, was deprived of their liberty.

WHEREFORE, the plaintiffs Sharif Lee and Cyprian Smith demand judgment against the defendants, jointly and severally, as follows:

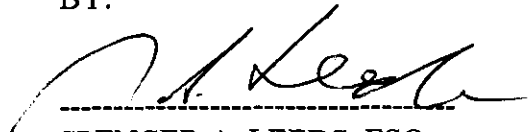
- a. In favor of plaintiffs in the amount of five Million Dollars for each of plaintiffs' respective Causes of Action;
- b. Awarding costs and disbursements of this action to the plaintiffs;
- c. Awarding reasonable attorney fees of this action to the plaintiffs;
- d. Awarding plaintiffs punitive damages in the amount of Five Million Dollars for each of plaintiffs Causes of Action; and
- e. Awarding such other and further relief as this Court may deem appropriate, just and proper.

The plaintiffs hereby demand a jury trial.

Dated; Brooklyn, New York
 September 28, 2011

THE PLAINTIFFS,

BY:

A handwritten signature in black ink, appearing to read 'S. A. Leeds', is written over a horizontal dashed line.

SPENCER A. LEEDS, ESQ.

Attorney for Plaintiffs
26 Court Street, Suite 2100
Brooklyn, New York 11242
(718) 488-8255

TO:

NEW YORK CITY
Office of Corporation Counsel
100 Church Street, 4th Floor
New York, New York 10007

Detective Patrick Smith, Shield No. 5453
67th Precinct
2820 Snyder Avenue
Brooklyn, New York 11226

Police Commissioner Raymond W. Kelly
1 Police Plaza, Room 1406
New York, New York 10006

Police Officer Frederic Daughtry, Shield No. 25363
67th Precinct
2820 Snyder Avenue
Brooklyn, New York 11226

Police Officer Zahid Mehmood, Shield No. 8879
67th Precinct
2820 Snyder Avenue
Brooklyn, New York 11226

Police Officer Marlon Guthrie, Shield No. 16947
67th Precinct
2820 Snyder Avenue
Brooklyn, New York 11226

Detective Michael Hardman, Shield Number 7361
67th Precinct
2820 Snyder Avenue
Brooklyn, New York 11226

Police Officer Matthew DeGennaro, Shield No. 6635
84th Precinct
301 Gold Street
Brooklyn, New York 11201

Police Officer Peter Cundari, Shield No. 2620
84th Precinct
301 Gold Street
Brooklyn, New York 11201

Police Officer Matthew Kalil, Shield No. 22351
84th Precinct
301 Gold Street
Brooklyn, New York 11201

David Bethelmy
5208 Beverley Road
Brooklyn, New York 11203

Shenelle Bethelmy
5208 Beverley Road
Brooklyn, New York 11203

Joan C. Bethelmy
5208 Beverley Road
Brooklyn, New York 11203

Janell P. Bethelmy
5208 Beverley Road
Brooklyn, New York 11203

JS 44 (Rev. 12/07)

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1997, is required for the use of the Clerk of Court for the court initiating the civil docket sheet. (SEE INSTRUCTIONS ON THE REVERSE OF THE FORM.)

I. (a) PLAINTIFFS

SHARIF LEE and CYPRIAN SMITH

(b) County of Residence of First Listed Plaintiff KINGS
(EXCEPT IN U.S. PLAINTIFF CASES)

NO SUMMONS ISSUED

(c) Attorney's (Firm Name, Address, and Telephone Number)

Spencer A. Leeds, Esq., 26 Court Street, Suite 2100, Brooklyn, NY
11242, 718-488-8255

II. BASIS OF JURISDICTION (Place an "X" in One Box Only)

- ☐ 1 U.S. Government Plaintiff
☐ 2 U.S. Government Defendant
☒ 3 Federal Question (U.S. Government Not a Party)
☐ 4 Diversity (Indicate Citizenship of Parties in Item III)

IV. NATURE OF SUIT (Place an "X" in One Box Only)

CONTRACT	TORTS	FORFEITURE/PENALTY	BANKRUPTCY	OTHER STATUTES
☐ 110 Insurance ☐ 120 Marine ☐ 130 Miller Act ☐ 140 Negotiable Instrument ☐ 150 Recovery of Overpayment & Enforcement of Judgment ☐ 151 Medicare Act ☐ 152 Recovery of Defaulted Student Loans (Excl. Veterans) ☐ 153 Recovery of Overpayment of Veteran's Benefits ☐ 160 Stockholders' Suits ☐ 190 Other Contract ☐ 195 Contract Product Liability ☐ 196 Franchise	PERSONAL INJURY ☐ 310 Airplane ☐ 315 Airplane Product Liability ☐ 320 Assault, Libel & Slander ☐ 330 Federal Employers' Liability ☐ 340 Marine ☐ 345 Marine Product Liability ☐ 350 Motor Vehicle ☐ 355 Motor Vehicle Product Liability ☐ 360 Other Personal Injury PERSONAL INJURY ☐ 362 Personal Injury - Med. Malpractice ☐ 365 Personal Injury - Product Liability ☐ 368 Asbestos Personal Injury Product Liability PERSONAL PROPERTY ☐ 370 Other Fraud ☐ 371 Truth in Lending ☐ 380 Other Personal Property Damage ☐ 385 Property Damage Product Liability	☐ 610 Agriculture ☐ 620 Other Food & Drug ☐ 625 Drug Related Seizure of Property 21 USC 881 ☐ 630 Liquor Laws ☐ 640 R.R. & Truck ☐ 650 Airline Regs. ☐ 660 Occupational Safety/Health ☐ 690 Other LABOR ☐ 710 Fair Labor Standards Act ☐ 720 Labor/Mgmt. Relations ☐ 730 Labor/Mgmt. Reporting & Disclosure Act ☐ 740 Railway Labor Act ☐ 790 Other Labor Litigation ☐ 791 Empl. Ret. Inc. Security Act IMMIGRATION ☐ 462 Naturalization Application ☐ 463 Habeas Corpus - Alien Detainee ☐ 465 Other Immigration Actions	☐ 422 Appeal 28 USC 158 ☐ 423 Withdrawal 28 USC 157 PROPERTY RIGHTS ☐ 820 Copyrights ☐ 830 Patent ☐ 840 Trademark SOCIAL SECURITY ☐ 861 HIA (1395ff) ☐ 862 Black Lung (923) ☐ 863 DIWC/DIWW (405(g)) ☐ 864 SSID Title XVI ☐ 865 RSI (405(g)) FEDERAL TAX SUITS ☐ 870 Taxes (U.S. Plaintiff or Defendant) ☐ 871 IRS—Third Party 26 USC 7609	☐ 400 State Reapportionment ☐ 410 Antitrust ☐ 430 Banks and Banking ☐ 450 Commerce ☐ 460 Deportation ☐ 470 Racketeer Influenced and Corrupt Organizations ☐ 480 Consumer Credit ☐ 490 Cable/Sat TV ☐ 810 Selective Service ☐ 850 Securities/Commodities/Exchange ☐ 875 Customer Challenge 12 USC 3410 ☐ 890 Other Statutory Actions ☐ 891 Agricultural Acts ☐ 892 Economic Stabilization Act ☐ 893 Environmental Matters ☐ 894 Energy Allocation Act ☐ 895 Freedom of Information Act ☐ 900 Appeal of Fee Determination Under Equal Access to Justice ☐ 950 Constitutionality of State Statutes

V. ORIGIN

(Place an "X" in One Box Only)

- ☒ 1 Original Proceeding
☐ 2 Removed from State Court
☐ 3 Remanded from Appellate Court
☐ 4 Reinstated or Reopened
☐ 5 Transferred from another district (specify)
☐ 6 Multidistrict Litigation
☐ 7 Appeal to District Judge from Magistrate Judgment

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing (Do not cite jurisdictional statutes unless diversity):

42 USC SECTIONS 1983 and 1988

Brief description of cause:

Unreasonable seizure of person; False arrest and Illegal Imprisonment

VII. REQUESTED IN COMPLAINT:

☐ CHECK IF THIS IS A CLASS ACTION UNDER F.R.C.P. 23

DEMAND \$

CHECK YES only if demanded in complaint:

JURY DEMAND: ☒ Yes ☐ No

VIII. RELATED CASE(S) IF ANY

(See instructions):

JUDGE

DOCKET NUMBER

DATE

SIGNATURE OF ATTORNEY OF RECORD

September 28, 2011

FOR OFFICE USE ONLY

RECEIPT #

AMOUNT

APPLYING IFP

JUDGE

KAM

MAG. JUDGE

RBK

11CV4839

ARBITRATION CERTIFICATION

I, SPENCER A. LEEDS, ESQ., counsel for PLAINTIFFS do hereby certify pursuant to the Local Arbitration Rule 83.10 that to the best of my knowledge and belief the damages recoverable in the above captioned civil action exceed the sum of \$150,000 exclusive of interest and costs.
☒ Relief other than monetary damages is sought.

DISCLOSURE STATEMENT - FEDERAL RULES CIVIL PROCEDURE 7.1

Identify any parent corporation and any publicly held corporation that owns 10% or more of its stocks:

Please refer to NY-E Division of Business Rule 50.1(d)(2)

1.) Is the civil action being filed in the Eastern District of New York removed from a New York State court located in Nassau or Suffolk County? no

2.) If you answered "no" above:

a.) Did the events or omissions giving rise to the claim or claims, or a substantial part thereof, occur in Nassau or Suffolk County? no

b.) Did the events or omissions giving rise to the claim or claims, or a substantial part thereof, occur in the Eastern District? yes

If your answer to question 2 (b) is "No," does the defendant (or a majority of the defendants, if there is more than one) reside in Nassau or Suffolk County, or, in an interpleader action, does the claimant (or a majority of the claimants, if there is more than one) reside in Nassau or Suffolk County? _____

(Note: A corporation shall be considered a resident of the County in which it has the most significant contacts).

I am currently admitted in the Eastern District of New York and currently a member in good standing of the bar of this court.

Yes ☒

No _____

Are you currently the subject of any disciplinary action(s) in this or any other state or federal court?

Yes _____ (If yes, please explain)

No ☒

Please provide your E-MAIL Address and bar code below. Your bar code consists of the initials of your first and last name and the last four digits of your social security number or any other four digit number registered by the attorney with the Clerk of Court.

(This information must be provided pursuant to local rule 11.1(b) of the civil rules).

ATTORNEY BAR CODE: SL0846

E-MAIL Address: spenceraleeds@verizon.net

I consent to the use of electronic filing procedures adopted by the Court in Administrative Order No. 97-12, "In re Electronic Filing Procedures(EFP)", and consent to the electronic service of all papers.

Signature: _____

